

Rev. 4/18

UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT
CIVIL APPEAL STATEMENT

Please TYPE. Attach additional pages if necessary.

11th Circuit Docket Number: 25-13631-C

Caption: Citadel Securities LLC v. U.S. Securities and Exchange Commission	District and Division: <u>U.S. Securities and Exchange Commission</u> Name of Judge: _____ Nature of Suit: _____ Date Complaint Filed: _____ District Court Docket Number: <u>SEC Docket No. SR-IEX-2025-02</u> Date Notice of Appeal Filed: <u>Petition for Review: 10/17/2025</u> ☐ Cross Appeal ☐ Class Action Has this matter previously been before this court? ☐ Yes ☒ No If Yes, provide (a) Caption: _____ (b) Citation: _____ (c) Docket Number: _____
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	Attorney Name	Mailing Address	Telephone, Fax, Email
For Appellant:	Eugene Scalia	Gibson, Dunn & Crutcher LLP	Tel. 202.955.8500
☐ Plaintiff	Helgi C. Walker		Tel. 214.698.3100 (Richman)
☐ Defendant	Brian A. Richman	1700 M Street, N.W.	Fax 202.467.0539
☒ Other (Specify)	John Tienken	Washington, DC 20036	EScalia@gibsondunn.com
Petitioner	Brandon C. Wolf	2001 Ross Avenue Suite 2100	HWalker@gibsondunn.com
		Dallas, TX 75201	BRichman@gibsondunn.com
			JTienken @gibsondunn.com
			BWolf@gibsondunn.com
For Appellee:	Emily True Parise	U.S. Securities & Exchange Commission	Tel. (202) 551-5169
☐ Plaintiff		Office of the General Counsel	parisee@sec.gov
☐ Defendant		100 F ST NE	
☒ Other (Specify)		WASHINGTON, DC 20549	
Respondent			

Please CIRCLE/CHECK/COMPLETE the items below and on page 2 that apply.

Jurisdiction	Nature of Judgment	Type of Order	Relief
☒ Federal Question	☐ Final Judgment, 28 USC 1291	☐ Dismissal/Jurisdiction	Amount Sought by Plaintiff: \$ <u>n/a</u>
☐ Diversity	☐ Interlocutory Order, 28 USC 1292(a)(1)	☐ Default Judgment	Amount Sought by Defendant: \$ <u>n/a</u>
☐ US Plaintiff	☐ Interlocutory Order Certified, 28 USC 1292(b)	☐ Summary Judgment	Awarded: \$ _____
☐ US Defendant	☐ Interlocutory Order, Qualified Immunity	☐ Judgment/Bench Trial	to _____
	☒ Final Agency Action (Review)	☐ Judgment/Jury Verdict	Injunctions:
	☐ 54(b)	☐ Judgment/Directed Verdict/NOV	☐ TRO
		☐ Injunction	☐ Preliminary
		☒ Other <u>Final Agency Order</u>	☐ Permanent
			☐ Granted
			☐ Denied

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Based on your present knowledge:

- (1) Does this appeal involve a question of First Impression? ☐ Yes ☒ No
What is the issue you claim is one of First Impression? _____
- (2) Will the determination of this appeal turn on the interpretation or application of a particular case or statute? ☒ Yes ☐ No
If Yes, provide
(a) Case Name/Statute Securities Exchange Act of 1934; Administrative Procedure Act
(b) Citation 15 U.S.C. 78a et seq.; 5 U.S.C. 500 et seq.
(c) Docket Number if unreported _____
- (3) Is there any case now pending or about to be brought before this court or any other court or administrative agency that
(a) Arises from substantially the same case or controversy as this appeal? ☐ Yes ☒ No
(b) Involves an issue that is substantially the same, similar, or related to an issue in this appeal? ☐ Yes ☒ No
If Yes, provide
(a) Case Name _____
(b) Citation _____
(c) Docket Number if unreported _____
(d) Court or Agency _____
- (4) Will this appeal involve a conflict of law
(a) Within the Eleventh Circuit? ☐ Yes ☒ No
(b) Among circuits? ☐ Yes ☒ No

If Yes, explain briefly:

- (5) Issues proposed to be raised on appeal, including jurisdictional challenges:

Whether the Securities and Exchange Commission's Order Approving a Proposed Rule Change, 90 Fed. Reg. 45,861 (SEC Sept. 23, 2025), violates the Securities Exchange Act of 1934, is otherwise arbitrary and capricious under the Administrative Procedure Act, and should be vacated.

I CERTIFY THAT I SERVED THIS CIVIL APPEAL STATEMENT ON THE CLERK OF THE U.S. COURT OF APPEALS FOR THE ELEVENTH CIRCUIT AND

SERVED A COPY ON EACH PARTY OR THEIR COUNSEL OF RECORD, THIS 10th DAY OF November, 2025.

Eugene Scalia

NAME OF COUNSEL (Print)

/s/ Eugene Scalia

SIGNATURE OF COUNSEL